

		Defendant had no reason to believe the number was incorrect. (Rudkin Decl., ¶ 8.) Thus, the burden shifts to Plaintiff to demonstrate there is an issue of material fact as to whether Defendant knew the residual value provided was false at the time of purchase. Plaintiff fails to meet her burden. Plaintiff concedes she “does not dispute Defendant was not aware of the correct residual value at the time of the transaction” This alone is sufficient to grant summary adjudication. Further, Plaintiff only disputes Defendant was the responsible party for requesting the fair market value rather the loyalty payoff from US Bank to use as the residual value. However, Defendant requesting due to a mistake is different than intentionally requesting the incorrect figure. Plaintiff presents no evidence Defendant knew it should have requested the loyalty payoff rather than the fair market value. Thus, summary adjudication is granted as to the 4th cause of action (labeled count V).
10	Tsirtsis vs. Pacific Hospital Long Beach 2021-01234325 Motion for Sanctions Motion for Summary Judgment/Adjudication	Defendant Dr. Ian Armstrong’s Motion for Summary Judgment/Adjudication is GRANTED. Defendant moves for summary judgment or adjudication as to Plaintiff’s First Amended Complaint (FAC). The FAC alleges claims for (1) recovery of stolen property, (2) medical battery, and (3) unfair competition, arising from an alleged bribe and kickback scheme between his doctors and a spine surgical center, resulting in alleged medically unnecessary procedures. The FAC does not identify specific procedures which were allegedly unnecessary. Defendant asserts summary judgment is required based on the Court’s 12/29/25 order deeming admitted Defendant’s requests for admissions to Plaintiff regarding essential elements of Plaintiff’s claims. Plaintiff filed a motion to withdraw the admissions on 6/4/26, nearly five months after Defendant’s MSJ was filed. On 7/6/26, this Department continued the hearing on the summary judgment motion to provide for the discovery judge, Judge De La Cruz, to rule on Plaintiff’s Motion to Withdraw Deemed Admissions, which was set for hearing on 7/22/26. However, on 7/20/26, Judge De La Cruz continued the hearing on that motion to 8/26/26 because the parties’ Joint Letter Brief filed on 7/13/26 exceeded the page limit. Therefore, this Department continued the hearing to the present date.

	On 8/26/26, Judge De La Cruz denied Plaintiff's motion to withdraw the admissions which form the basis for Defendant's MSJ. Plaintiff has been deemed to have admitted essential elements of his claims are not present. (Separate Statement of Undisputed Facts 7-19.) Plaintiff's initial opposition argues that the deemed admissions should be withdrawn, but that issue has been conclusively decided against Plaintiff. In the 7/6/26 minute order, the Court allowed the parties to submit supplemental briefs, not to exceed five pages each, no later than 7/24/26. The parties filed additional briefs subsequent to Judge De La Cruz's 8/26/26 order, which were not expressly authorized by this Court. Plaintiff's 8/31/26 supplemental opposition also exceeds the page limit of the supplemental brief allowed in the 7/6/26 order by 8 pages. Although the Court is not required to consider the additional briefs, even if the Court considers them, they do not demonstrate a triable issue of fact. In Plaintiff's amended opposition filed on 8/31/26, Plaintiff argues that although the RFAs are deemed admitted, the admissions are narrower than Defendant argues and do not conclusively dispose of Plaintiff's claims. Plaintiff's admissions show that moving Defendant never met Plaintiff, never communicated with Plaintiff, and never performed surgery on him, that the surgeries performed were medically necessary, that Defendant did not commit medical battery, and Defendant did not violate Penal Code section 496(a), among other admissions. Plaintiff argues the admissions do not encompass the allegation that Defendant aided other Defendants in receipt of money derived from the alleged kickback scheme, nor do they address other procedures which occurred at facilities other than Pacific Hospital of Long Beach. Finally, Plaintiff argues that although he admitted there were no damages suffered, he may still be entitled to restitution under the UCL. The admissions conclusively demonstrate Defendant did not engage in the wrongful conduct alleged in the FAC under the first, second, or third causes of action related to medical battery, lack of consent, or theft of Plaintiff's property. The Court is not required to consider new theories of liability which were not alleged in the FAC or raised in the initial opposition. However, even considering
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		Plaintiff's new theories, they are insufficient to demonstrate triable issue of fact at this stage in light of the broad admissions which have been established against Plaintiff. Motion No. 2: Plaintiff James Dimitri Tsirtsis, aka Dimitrios Tsirtsis's Amended Motion for Sanctions is DENIED. Plaintiff seeks sanctions against Defendant and his counsel under Code of Civil Procedure section 128.7 for filing an unmeritorious motion for summary judgment and related litigation conduct. As discussed above, the summary judgment motion has merit. Plaintiff has not shown Defendant or his counsel engaged in wrongful conduct in discovery or related to the motion. Therefore, the motion for sanctions is denied.
11	All Inclusive Insurance Services, LLC vs. EOS Organization, LLC 2023-01310746 Motion to Strike Answer	The Motion to Strike (ROA 415) filed on September 8, 2026, is moot in light of the Court's ruling on September 14, 2026. The Court notes a Notice of Ruling was filed on September 18, 2026 (ROA 422). On September 28, 2026, the Court will inquire with counsel as to further status and selecting a future status conference date.